

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO.

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virender Modi, No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No. **126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No. **134**/Vivek Purohit, No. **142**/Bharat Das Vishnav and No. **177**/Rajiv Kumar Rana are in custody produced through VC.

Accused Vivek Harivasi (**115**), Vijay Shukla (**149**), Raj Kumar Modi (**176**), and Surender Singh (**140**) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Accused Leena Harivassi (**146**), Vimal Sanwal Sharma (**147**), Ajit Singh (**150**), 154, Ramlal Arya (**158**), Hemant Kumar (**159**), Parveen Kumar (**161**), Ravi Kr. Tak (**166**), Raj Kumar Bohra (**171**), Damyanti Bhandari (**179**), Dishan **182** to **186** in person being on bail.

Accused Akshat Singh (No. **136**) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (No. **127**) in person represented by Ms. Manisha Singh, Advocate.

Accused Shiv Raj Sharma (No. **160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Hemant Kumar Jain (No. **159**) on bail represented by Ms. Sunita Saini, Advocate.

AR Kanak Krishi of accused Company (No. **106**) not present but represented by Sh. Nitish Bhardwaj, Advocate.

AR Devender Kumar of accused Company (No. **112**) not present but represented by Sh. Anubhav Almadi, Advocate.

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Accused Jainam Rathore (No. **130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (No. **132**) and Neha Ghemawat Modi (No. **124**).

Sh. Neeraj Dev Gaur, Advocate along-with accused Raj Kumar Bohra (No. **171**).

Sh. Neeraj Dev Gaur, Advocate for accused Megha Chauhan (No. **163**).

Accused nos. **144,145,148,151** on bail but granted personal personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Ms. Manisha Singh, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

Accused Nos. **71** to **78** , companies, represented through accused Sidharth Chauhan (**135**) on interim bail granted by Hon'ble High Court.

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Accused No. **79** , company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, represented through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, represented through accused Jainam Rathod (No.130).

Accused Nos. **86, 87** and **88** , companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail in person

Accused No. **89**, company, represented through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97** , companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. **101**, company, represented through Shri Abhishek, AR, in person

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Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR , in person

Accused No. **104**, company, represented through Shri Pawan Sharma, AR , in person

Accused No. **105**, company, represented through Shri Anup AR , in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR , in person

Accused No. **107**, compnay, represented through Shri Fateh Singh, AR , in person

Accused No. **108**, company, represented through Shri Jinsan, AR , in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR , in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR , in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR , in person

Accused Nos. **112**, company, represented through Shri Devender, AR, in person.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Badmer Rajasthan Jail.

Accused nos. **114,120, 123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Badmer Jail.

Sh. Sandeep Aneja, Advocate for accused No. 141 Aditya Sarda.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (119), Sudhir Punia (143), as proclaimed persons.

None for the accused Nos. **83**.

Accused (No. **187**) Mahesh Kumar Tak absent. His anticipatory bail is pending.

*Proceedings qua accused **Mahender Kumar Tak (155)** and **Vijay Kumar Jindal (175)** abetted vide order dated 25.03.2022.*

For Awaiting Death Report

Accused No. 122 (Virender Modi) stated to be died. Now death report of accused No.122 (Virender Modi) be called for **30.05.2023** through SHO concerned.

(Accused Marked their presence)

Accused No. 116 Nitin Rathore, No. 117 Priyanka Modi, No.118 Jitender Vyas, No. 121 Paras Bolia, No. 127 Abhay K. Shah, No. 128 Manish Chaudhary, No. 130 Jainam Rathod, No. 133 Prakash Chandra Purohit, No. 136 Akshat Singh, accused No. 139 Naveen Kumar, accused No. 140 Surender Singh, No. 147 Vimal Sanwermal Sharma, accused No. 149 Vijay Shukla, No. 150 Ajit Singh Rathore, No. 152 Nazima Khan, No. 153 Shabbir Khan, No. 158 Ramlal Arya, No. 159 Hemant Kumar Jain, No. 161 Praveen Kumar, No. 165 Shyam Bihari Gupta, No. 166 Ravi Tak, No.170 Sudhir Mehta, No. 171 Raj Kumar Bohra, No. 172 Saurabh Tak, No. 173, Peeyush Aggarwal, No. 174 Paramvir Singh Sangwan, No. 176 Raj Kumar Modi, No. 178 Mahesh Dutt Sharma, No. 179 Damyanti Bhandari, No. 182 Nimesh Kumar Ramsh Chandra Soni, No. 183 Rituraj Singh, No. 184 Dushyant Singh Rathor, No. 185 Shashank Shekhar Singh Rathore, No. 186 Jitesh Kumar Parmar.

(Application for substitution)

An application of substitution of the AR of M/s Goldline International Finvest Ltd. (Accused No.104) has been filed. Along-with application Authorization Letter has also been attached. Heard. In view of grounds mentioned in the application, the same is hereby allowed. Mr. Vicky son of Ramesh Badathwal is substituted as Authorized Representative of accused No.104.

(Application for marking presence of accused No.181 Neha Kataria)

An application for marking presence of accused No.181 Ms. Neha Kataria through her counsel and exempting the accused from personal

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appearance as already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 181 Ms. Neha Kataria is hereby marked.

(Application for marking presence of accused No.180 Ichchhita Dungarwal)

An application for marking presence of accused No.180 Ichchhita Dungarwal through her counsel and exempting the accused from personal appearance as already on permanent exemption, has been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'permanent exemption already allowed'. Heard. Allowed. Now presence of accused No. 181 Ichchhita Dungarwal is hereby marked.

(Application under Section for seeking exemption)

Separate applications seeking exemption from personal appearance on behalf of accused No. **115** (Vivek Harivyasi), accused No.**146** (Leena Harivyasi, accused No. **163** (Megha Chauhan), accused No. **174** (Paramvir Sangwan) and accused No. **164** (Indu Tak) have been filed. Learned Prosecutor for SFIO has made an endorsement on the margin of application that 'may be allowed for today only'. Heard. In view of the grounds mentioned in the application, the same are allowed and the accused named above are exempted from personal appearance for today only.

Reply to the application filed by accused No. 174 (Paramvir Sangwan) be also filed on **30.05.2023**.

(Proceedings adjourned before High Court qua accused No. 135)

As far as accused Siddharth Chauhan (**135**) is concerned, counsel appearing on behalf of accused has placed on record copy of orders dated 27.03.2023, passed by Hon'ble High Court in CRM-M-27904-2022 and order dated has prayed that PO proceeding may be adjourned qua accused Siddharth Chauhan (**135**). Learned Prosecutor for SFIO has made a note on the margin of

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order sheet that 'Interim order of P.O. proceedings adjournment in force.' Heard. The PO proceedings qua accused Siddartha Chauhan (135) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **30.05.2023** for awaiting further orders of Hon'ble High Court.

(Application under Section 306 of Cr.P.C. on behalf of accused No. 160 Shivraj Sharma)

Second application under Section 306 of the Code of Criminal Procedure, 1973, for the tender of pardon to applicant/accused No. 160/Shivraj Sharma and allowing him to make a full and true disclosure of the whole of circumstances within his knowledge has been filed. Copy supplied. Now to come up on **22.05.2023**, for filing reply and consideration on aforesaid application.

(Application for placing on record case status qua accused No. 141 Aditya Sarda)

An application for placing on record case status qua applicant/accused No. 141 namely Aditya Sarda. Along-with application a copy of order dated 27.03.2023, passed by Hon'ble High Court in CRM-M-17518-2022 has also been attached. The Hon'ble High Court has pleased to adjourned the case for 18.05.2023. Heard. In view of the above, PO proceedings qua the above-said accused persons is adjourned to **30.05.2023** and also for awaiting order of Hon'ble High Court.

(Production warrants of accused)

Accused Rajiv Kumar Rana (No. 177) has not been produced. Now, production warrant of accused Rajiv Kumar Rana (177) be issued for 30.05.2023, through video conferencing.

Accused namely Mukesh Modi (113) not produced by the Jail Authority by the District Jail Badmer Rajasthan. Let, fresh production warrant

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of accused Mukesh Modi (113) be issued to District Jail Badmer, Rajasthan for producing through video conferencing on 30.05.2023.

Accused namely Rahul Virendra Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) have not been produced through Video Conferencing from Jodhpur Jail. Let, fresh production warrants of accused Rahul Virendra Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for 30.05.2023 for appearance of accused persons either in person or through through VC.

(Approvers)

Learned Special Public Prosecutor has further informed that there are five accused persons namely **Parveen Kumar (161)**, **Nimesh Kumar Ramesh Soni (182)**, **Ritu Raj Singh (183)**, **Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on 22.05.2023 for recording of their respective statements as approvers.

(Awaiting further orders)

Accused namely Vivek Harivyasi (115), Surender Singh (140), Raj Kumar Modi (176) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on 30.05.2023 for appearance.

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Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **30.05.2023** for appearance.

Accused No. 117 Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court. Now to come up on **30.05.2023** for appearance.

(Awaiting further orders)

No further order of Hon'ble Rajasthan High Court against accused accused Meenakshi Modi (132) and Neha Ghemawat Modi (124), received. Now to come up on **30.05.2023** for further orders.

(Accused No. 187 Mahesh Kumar Tak)

No coercive step will be taken against accused No. 187 Mahesh Kumar Tak till the pendency of his second anticipatory bail application.

(Accused persons, whose matters are pending before Hon'ble High Court)

Accused No. 135 Sidharth Chauhan, No. 141 (Aditya Sarda).

(Bail bonds furnished)

Orders from Hon'ble High Court passed in CRM-M-20279-2020 dated 29.03.2023 have been received vide Letter No. Criminal/813039/2023 dated 01.04.2023 through office Endst. No. 1865 dated 03.04.2023 learned District and Sessions Judge, Gurugram, vide which the Hon'ble High Court has been pleased to allow the petition of the petitioners with the direction to furnish bail bonds/sureties before this Court. As per direction of Hon'ble High Court accused No.116 Nitin

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Rathore, A-172 Saurabh Tak, A-170 Sudhir Mehta, A-165 Shyam Bihari Gupta, A-152 Nazima Khan, A-153 Shabbir Khan, A-128 Manish Chaudhary, A-129 Deepak Shrimali, A-134 Vivek Purohit, A-127 Abhay K. Shah, A-121 Paras Bolia and A-118 Jitender Vyas have appeared in person along-with their respective counsel and have moved an application for furnishing bail/surety bonds in compliance of order passed by Hon'ble High Court vide order dated 29.03.2023 in CRM-M-20279-2020 along-with connected case bearing Nos. CRM-M No. 17096 of 2023 Shyam Bihari Gupta vs. SFIO; CRM-M No. 19053 of 2022 Nitin Rathor vs. SFIO; CRM-M No. 20279 of 2020 Mahesh Dutt Shrama vs. SFIO; CRM-M No. 24299 of 2022 Saurabh Tak vs. SFIO; CRM-M No. 25052 of 2022 Nazima Khan vs. SFIO; CRM-M No. 25054 of 2022 Shabbir Khan vs. SFIO; CRM-M No. 25084 of 2022 Deepak Shrimali vs. SFIO; CRM-M No. 25412 of 2020 Paras Bolia vs. SFIO, CMR No. 25508 of 2022 Naveen Chaudhary vs. SFIO; CRM-M No. 25516 of 2022 Parkash Chandra Purohit vs. SFIO, CRM-M No. 17804 of 2022 Manish Choudhary vs. SFIO; CRM-M No. 27845 of 2022 Shinder Pal Sing and another vs. SFIO; CRM-M No.31742 of 2022 Jinender Vyas vs. SFIO; CRM-M No. 43210 of 2019 Abhay K. Shah vs. SFIO; CRM-M No.51929 of 2019 Nitin Rathore vs. SFIO and CRM-M No.9417 of 2021 Sudhir Mehta vs. SFIO. In compliance of orders of Hon'ble High Court, accused persons named-above are directed to furnish their bail bonds/surety

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bonds for a sum of Rs. 1,00,000/- each with one surety in the like amount each. Bonds are furnished. Same are accepted and attested.

In the light of concession of granting bail by the Hon'ble High Court to the accused persons as well as appearance of accused No.116 Nitin Rathore, A-172 Saurabh Tak, A-170 Sudhir Mehta, A-165 Shyam Bihari Gupta, A-152 Nazima Khan, A-153 Shabbir Khan, A-128 Manish Chaudhary, A-129 Deepak Shrimali, A-134 Vivek Purohit, A-127 Abhay K. Shah, A-121 Paras Bolia and A-118 Jitender Vyas, the P.O. proceedings initiated against the aforesaid accused persons vide order dated 25.03.2022 are hereby dropped.

However, no intimation have been received on behalf of A-162 Naveen Choudhary, A-137 Shinder Pal Singh and A-138 Gurbir Singh Sandhu. Despite direction given to them by the Hon'ble High Court in their bail orders, to appear before this Court on or before 03.04.2023. Let notice to them be issued for **30.05.2023**.

Date of order: 03.04.2023

(Dr. Virender Parshad)
Additional Sessions Judge-cum-
Special Judge, Gurugram.
(UID No. HR0082)

Sameer
Stenographer-II

Dr. Virender Parshad
ASJ-cum-Special Judge
Gurguram/UID No. HR0082.